

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of **1 April 2026** (the "Effective Date") by and between **Harbourview Analytics, Inc.**, a corporation with its principal place of business at 512 Tidewater Avenue, Harbourview, MA ("Provider"), and **Meridian Grain Co.**, a corporation with its principal place of business at 88 Silo Road, Bexley Flats, KS ("Customer").

Agreement Reference: **MSA-HV-2026-0417**

1. Definitions

"Services" means the data engineering and analytics services described in one or more Statements of Work executed under this Agreement. "Deliverables" means any report, model, dataset or documentation produced by Provider in the course of performing the Services. "Confidential Information" means non-public information disclosed by either party that is marked confidential or that a reasonable person would understand to be confidential.

2. Term and Renewal

This Agreement commences on the Effective Date and continues for an initial term of **twenty-four (24) months** (the "Initial Term"). Following the Initial Term, this Agreement renews automatically for successive periods of **twelve (12) months** unless either party gives written notice of non-renewal not less than **sixty (60) days** before the end of the then-current term.

3. Fees and Payment

Customer shall pay the fees set out in each Statement of Work. Invoices are payable **net thirty (30) days** from the invoice date. Provider may increase rates once per renewal term by no more than **four percent (4%)**, on ninety (90) days written notice. Amounts properly disputed in good faith are not subject to late fees while the dispute is being resolved under Section 10.

4. Termination

Either party may terminate this Agreement for material breach if the breaching party fails to cure within **thirty (30) days** of written notice describing the breach. Customer may terminate any Statement of Work for convenience on **forty-five (45) days** written notice, in which case Customer shall pay for Services performed through the effective date of termination plus any non-cancellable third-party commitments.

5. Data Ownership and Residency

Customer retains all right, title and interest in Customer Data. Provider is granted a limited licence to process Customer Data solely to deliver the Services. Provider shall store and process all Customer Data within the **United States**. Provider shall not transfer Customer Data outside that territory without Customer's prior written consent.

6. Confidentiality

Each party shall protect the other's Confidential Information using no less than reasonable care and shall not disclose it except to employees and contractors with a need to know who are bound by obligations no less protective than these. Confidentiality obligations survive for **five (5) years** after termination, and indefinitely for trade secrets.

7. Limitation of Liability

Except for breaches of Section 6 (Confidentiality) and Section 5 (Data Ownership and Residency), each party's aggregate liability arising out of this Agreement is limited to the **total fees paid by Customer in the twelve (12) months preceding the event** giving rise to the claim. Neither party is liable for indirect, incidental or consequential damages.

8. Indemnification

Provider shall defend and indemnify Customer against third-party claims that the Deliverables infringe a United States patent, copyright or trade secret, provided Customer gives prompt notice and reasonable cooperation. This indemnity does not apply where the claim arises from Customer Data or from modifications made by Customer.

9. Service Levels

Provider shall maintain availability of the hosted components of the Services at **99.5% measured monthly**, excluding scheduled maintenance notified at least five (5) business days in advance. Where availability falls below the target, Customer is entitled to a service credit of five percent (5%) of the monthly fee for each full percentage point below target, capped at twenty-five percent (25%) of the monthly fee.

10. Dispute Resolution and Governing Law

The parties shall first attempt to resolve any dispute by good-faith negotiation between senior representatives within thirty (30) days. Any unresolved dispute shall be settled by binding arbitration administered in **Boston, Massachusetts** under the rules of a mutually agreed arbitral body. This Agreement is governed by the laws of the **Commonwealth of Massachusetts**, without regard to conflict-of-laws principles.

11. Assignment

Neither party may assign this Agreement without the other's prior written consent, except that either party may assign to a successor in connection with a merger or sale of substantially all of its assets, on written notice.

12. Entire Agreement

This Agreement, together with all Statements of Work, constitutes the entire agreement between the parties and supersedes all prior discussions. Amendments must be in writing and signed by authorised representatives of both parties.

Signed for and on behalf of the parties:

Harbourview Analytics, Inc.

Name: R. Okonkwo

Title: Chief Operating Officer

Date: 1 April 2026

Meridian Grain Co.

Name: L. Castellanos

Title: VP, Supply Chain

Date: 1 April 2026